

complaint

Mrs A is unhappy that her claim for water damage to her ceiling has not been paid. The policy is provided by Royal and Sun Alliance Insurance Plc (RSA).

background

Mrs A made a claim for water damage following a leak into her living room ceiling. RSA sent out three different assessors who investigated Mrs A's roof. None of the experts could find any roof damage.

RSA wrote to Mrs A requesting a surveyor's report to find out the cause of the damage. Mrs A remained unhappy with this and brought her complaint to this service.

Our adjudicator upheld Mrs A's complaint. She felt that based upon the policy wording, the RSA experts' files and the plumber's report from Mrs A this was enough to uphold Mrs A's case. RSA disagreed questioning the plumber's report date and the credibility of his evidence. RSA requested the case go to an ombudsman for a final decision.

my findings

I have considered all the available evidence and arguments to decide what is fair and reasonable in the circumstances of this complaint.

There was some confusion about how the claim first came about. Mrs A felt that the damage was to her roof and that it was likely to be down to children throwing stones at her roof. For this reason the RSA agents who came out to assess the roof could not find any damage.

The feedback regarding the damage was noted within the RSA records of the claim as *"heating pipes"* in April 2011. In June 2011 RSA noted that the damage was probably *"caused by a leak in pipe work from the bedroom floor."*

Later in the same month RSA note *"I suspect the leak is due to a plumbing problem.....it is very difficult to inspect."* Finally, in August 2011 RSA state that it required *"a plumbers report confirming the cause of damage and the rectification of any leak"*. Therefore, there is some consistency about what the RSA's agents suspect was causing the damage. The experts felt it was likely that the damage was coming from plumbing or heating pipes.

Based upon this the first thing for me to consider is the policy wording. Under the buildings section of the policy wording paragraph 4 of *"what is covered"* it refers to *"Freezing water in fixed water or fixed heating systems. Water escaping from washing machines, dishwashers, fixed water or fixed heating systems. Oil escaping from a fixed heating system."*

In relation to the points noted above regarding the likely cause of damage and the policy wording it is worth accepting that the point noted within RSA records about a plumber's report was a reasonable request. Within the same note on the RSA file it states *"we maybe able to cover the damaged ground floor ceiling if it can be established that the ceiling has been damaged by an escape of water from pipes, which I believe are located between the ceiling and the first floor."*

I have reviewed the invoice and report from the plumber on behalf of Mrs A. I have also checked the telephone note records between our adjudicator and the plumber. The plumber's report says *"A few weeks had passed and Mrs A called me again because it (the leak) had got worse and the ceiling had fallen down, I checked and found that this was a radiator leaking so I capped off the valves and disconnected the radiator."* Although RSA do not put much store by this detail it does highlight that the first time the plumber visited Mrs A it appears she had asked him to concentrate on the roof, this is consistent with all the other parties who had assessed the property.

Following on from this our adjudicator spoke to the plumber on two occasions. What we can gather from that is that he visited the property twice, Mrs A had her heating turned off, and that he was unsure of the exact dates he visited the property on.

I find all of this detail persuasive. Although I can understand RSA's position it is clear from its own records that RSA thought the damage was linked to the heating and plumbing system. Mrs A has provided details which have also been confirmed verbally by the plumber through discussions with our adjudicator. I do not see from the file that RSA have produced anything useful enough to detract from this evidence.

Therefore, in this case RSA have acted unreasonably in not accepting the plumber's report and declining to pay Mrs A's claim. On balance it does appear that an insured event has occurred and RSA should now reconsider the claim.

This has clearly been a difficult time for Mrs A and with three different experts from RSA all being unable to work out what was causing the damage it must have been very stressful for her. Although it was Mrs A who pointed out that she felt it was roof damage the experts all had a much better idea of what is causing the problem but appeared to do little to help. Further, RSA internal records show that a plumber's report would be useful yet RSA went on to request a surveyor's report despite its own records clearly indicating plumbing or heating pipes were likely to be the cause. In view of these points and the delays involved it is fair and reasonable for RSA to award Mrs A £250 for her distress and inconvenience in this case.

my final decision

I uphold this complaint.

I require Royal and Sun Alliance Insurance Plc to:

- reconsider the claim in line with policy terms and conditions. To any cash settlement 8% simple interest per annum should be added from the date of loss to the date of settlement less tax properly deductible;
- pay £250 for the distress and inconvenience caused to Mrs A.

I make no further award against Royal and Sun Alliance Insurance Plc.

John Quinlan
ombudsman